

PREPARED BY AND RETURN TO:

First Commercial Bank & Trust
Commercial Real Estate Lending Department
201 South Tryon Street, Suite 3100
Charlotte, North Carolina 28202

APN: 073-192-44 **Loan No.:** FCB-2025-CRE-00891

COMMERCIAL DEED OF TRUST

Security Agreement and Assignment of Leases, Rents, and Profits

**STATE OF NORTH CAROLINA
COUNTY OF MECKLENBURG**

THIS COMMERCIAL DEED OF TRUST (hereinafter "Deed of Trust") is entered into as of the **22nd day of January, 2025**, by and among:

GRANTOR/BORROWER: PINNACLE PROPERTIES GROUP, LLC, a Delaware limited liability company, authorized to do business in the State of North Carolina, with its principal place of business at 4500 Commerce Parkway, Suite 200, Charlotte, North Carolina 28217 (hereinafter "Grantor");

TRUSTEE: CAROLINA TITLE & TRUST COMPANY, a North Carolina corporation, located at 700 East Stonewall Street, Charlotte, North Carolina 28202 (hereinafter "Trustee"); and

BENEFICIARY/LENDER: FIRST COMMERCIAL BANK & TRUST, a North Carolina commercial bank, with its principal offices at 201 South Tryon Street, Charlotte, North Carolina 28202 (hereinafter "Lender").

RECITALS

WHEREAS, Grantor has applied to Lender for a commercial real estate loan in the principal amount of **ONE MILLION TWO HUNDRED THOUSAND AND NO/100 DOLLARS (\$1,200,000.00)** for the purpose of acquiring and improving certain commercial real property located in Mecklenburg County, North Carolina; and

WHEREAS, Lender has agreed to make such loan pursuant to a Promissory Note of even date herewith (the "Note") bearing interest at the rate of **7.875% per annum**, fixed for the initial term; and

WHEREAS, the Note matures on **February 1, 2035**, ten (10) years from the date of first payment, with a balloon payment of all outstanding principal, accrued interest, and other amounts then due; and

WHEREAS, Grantor desires to secure its obligations under the Note and this Deed of Trust by granting Trustee a first priority deed of trust lien on the real property described herein;

NOW, THEREFORE, in consideration of the foregoing and for other valuable consideration, Grantor hereby GRANTS AND CONVEYS to Trustee, in trust for the benefit of Lender, with POWER OF SALE, all of Grantor's right, title, and interest in and to the following described Property:

PROPERTY DESCRIPTION

Property Address: 4500 Commerce Parkway, Suite 200, Charlotte, North Carolina 28217

Tax Parcel ID (Mecklenburg County): 073-192-44

BEING all of that certain tract or parcel of land situated, lying, and being in the City of Charlotte, Mecklenburg County, State of North Carolina, more particularly described as follows:

BEING LOT 12A of COMMERCE PARK SUBDIVISION, PHASE III, as the same is shown and delineated upon that certain plat recorded in Plat Book 47, at Page 831, in the Mecklenburg County Registry, to which reference is hereby made for a more particular description.

Said property contains approximately 42,500 square feet of net rentable area in a Class B office building situated on approximately 3.2 acres; TOGETHER WITH all buildings, structures, and improvements now located or hereafter constructed thereon, all fixtures, equipment, and personal property attached thereto or used in connection therewith, all easements, rights-of-way, licenses, and other appurtenances, and all rents, income, profits, and proceeds generated therefrom.

COMMERCIAL LOAN TERMS

Loan Type: Commercial Real Estate Mortgage

Borrower Entity: Pinnacle Properties Group, LLC (Delaware LLC)

Original Loan Amount: \$1,200,000.00

Interest Rate: 7.875% per annum (fixed, 10-year term)

Amortization: 25 years

Balloon Payment: Due February 1, 2035

Note Date: January 22, 2025

Approximate Monthly Payment (P&I): \$9,394.00

Prepayment: 3% / 2% / 1% step-down schedule

ASSIGNMENT OF LEASES AND RENTS

As additional security for the indebtedness, Grantor hereby assigns, transfers, and sets over to Lender all of Grantor's right, title, and interest in and to all leases, licenses, and other agreements for use and occupancy of the Property, now existing or hereafter entered into, and all rents, issues, income, and profits arising or issuing from the Property or any part thereof ("Rents and Leases"). This assignment is a present, unconditional, and absolute assignment, not merely an assignment as security, subject to Grantor's license to collect and retain the Rents so long as no Event of Default has occurred and is continuing.

ENVIRONMENTAL REPRESENTATIONS

Grantor represents and warrants that: (a) no Hazardous Substances (as defined in applicable federal and state environmental laws) have been deposited, stored, or disposed of on, under, or from the Property; (b) no underground storage tanks exist on the Property; (c) no Environmental Claim has been made or threatened against Grantor or the Property; and (d) the Property is in material compliance with all applicable Environmental Laws.

ERISA AND ANTI-TERRORISM REPRESENTATIONS

Grantor represents that neither Grantor nor any of its members, managers, or affiliates is a Specially Designated National or Blocked Person as defined by the U.S. Treasury Department's

Office of Foreign Assets Control (OFAC), and that neither the loan proceeds nor the Property will be used for any unlawful purpose.

REMEDIES UPON DEFAULT

Upon the occurrence of an Event of Default, Lender shall be entitled to exercise all rights and remedies available under applicable law and this Deed of Trust, including, without limitation: (i) acceleration of all sums due; (ii) appointment of a receiver; (iii) foreclosure by power of sale or by judicial action; (iv) exercise of rights as a secured party under the Uniform Commercial Code; and (v) any other remedy available at law or in equity.

EXECUTION BY GRANTOR

IN WITNESS WHEREOF, Grantor has caused this Deed of Trust to be executed by its duly authorized Manager as of the date first written above.

PINNACLE PROPERTIES GROUP, LLC,
a Delaware limited liability company

By: RICHARD T. CHAMBERS
Its: Manager
Date: January 22, 2025

NOTARY ACKNOWLEDGMENT

**STATE OF NORTH CAROLINA
COUNTY OF MECKLENBURG**

I, **Brenda J. Simmons**, a Notary Public of **Mecklenburg County**, North Carolina, certify that **Richard T. Chambers**, personally appeared before me this day and acknowledged that he is the Manager of PINNACLE PROPERTIES GROUP, LLC, a limited liability company, and that he, as Manager, being authorized to do so, executed the foregoing on behalf of the limited liability company.

Witness my hand and notarial stamp/seal this **22nd day of January, 2025**.

BRENDA J. SIMMONS, Notary Public
Mecklenburg County, North Carolina
My Commission Expires: May 14, 2027
Notary Public No. 202108742

FILED FOR RECORD WITH THE MECKLENBURG COUNTY REGISTER OF DEEDS

Instrument No.: 2025-003412 | Book of Deeds: 37841 | Page: 089 | Recorded: January 24, 2025

DAVID GRANBERRY, Mecklenburg County Register of Deeds